From: **Bill Lu** bill_y_lu@yahoo.com
Subject: 27-CV-26-11606 (Your File No. 5490): Second meet-and-confer email: party and jurisdiction; windows in the 2020 hail claim
Date: November 1, 2026 at 7:15 PM
To: Mary Baskfield mbaskfield@kennedylf.com, Kevin Kennedy kkennedy@kennedylf.com
Cc: Jie Hu jie_h_hu@yahoo.com, Julie Parks jparks@kennedylf.com, Asli Abdi aabdi@kennedylf.com

Dear Ms. Baskfield and Mr. Kennedy:

This is our second meet-and-confer email about Defendant's October 21, 2026 discovery responses. Our first email, sent October 29, 2026, asked Defendant to produce the claim file and claim notes (Requests for Production ("RFP") Nos. 1 and 20) and the appraisal materials (RFP Nos. 15, 16 and 17) by November 6, 2026. Those requests remain outstanding. This email raises two additional issues. Please respond to section 1 by November 5, 2026, and to section 2 by November 9, 2026. We would like to resolve these issues without involving the Court.

This email does not serve new discovery requests. Each item below is called for by Plaintiffs' first sets of interrogatories, requests for production and requests for admission, to which Defendant responded on October 21, 2026.

1. Party and jurisdiction

The joinder deadline is November 16, 2026. By **November 5, 2026**, please:

- answer Requests for Admission Nos. 113, 114, 115, 128 and 129;
  - If Defendant admits all five without qualification, Plaintiffs will withdraw Requests for Admission Nos. 88, 89, 90, 91, 92, 112, 116, 117, 121, 125, 126, 127 and 137.
- complete Interrogatory No. 7 by stating which jurisdiction the First Affirmative Defense concerns and identifying any other person Defendant contends should be a party; and
- state whether Defendant contends any act in handling the claim was performed for an entity other than Fire Insurance Exchange (see FIE 1089, signed "Farmers Insurance Exchange").

2. Which windows were damaged and paid in the 2020 hail claim (Claim No. 3013539499-1)

Defendant's November 4, 2024 letter states: "Our investigation found the condition of the window and components to be from wear/tear as referrenced [sic] in the attached engineer report" (FIE 1021). That report (the "Prieve Report") concludes that two windows "have already been included and we understand paid for due to prior storm activity" (FIE 1037). Defendant's appraiser wrote on September 18, 2025 that "[t]he damage on the front windows in the dining room was from the prior claim" (FIE 1639).

On September 28, 2025, Plaintiffs asked Defendant for "[t]he positions of the damaged 2 sashes from our hail claim in 2020" and "[t]he positions of the damaged windows from claim(s) by previous owner, prior to 2015" (FIE 1653). Defendant replied on October 1, 2025, "Per your request, we have attached the prior claim estimate," and attached the estimate for the prior owner's 2014 claim (FIE 1654–1659). Neither the reply nor the attachment identifies the location of any window or sash.

Plaintiffs seek Defendant's 2020 records showing which windows and sashes were found damaged, and whether the 2020 Claim covered whole window units or individual sashes.

Each of Defendant's responses listed below objects on the ground that the claim was resolved

by the appraisal award. The documents sought concern the prior claims referred to in the Prieve Report (FIE 1037) and by Defendant's appraiser (FIE 1639). The response to RFP No. 2 states that Plaintiffs "were provided with relevant estimates and the settlement notice as part of the 2020 claim." The 2020 estimate produced (FIE 1796–1803) does not state the location of any window.

The requests and Defendant's responses:

- **RFP No. 23** (the complete October 13, 2020 photo log "with file names and metadata," any captions or inspector notes identifying each observation, and any worksheet showing which observations became 2020 line items "and which were not"). We have located an 11-page PDF (FIE 1781–1791). The response does not state whether it contains every photograph taken at the October 13, 2020 inspection. The PDF includes photographs of handwritten sketches labeled "Front window" and "Left window" (FIE 1791); we have not located the notes themselves. RFP No. 23 also refers to the Prieve Report's statement that a chip in the trim board beside the main-level southwest triple window "is visible in prior photo logs from Farmers Insurance dated October 13, 2020" (FIE 1034; photograph A-53). We have not located a document identifying which 2020 photograph shows that chip or whether the 2020 Claim addressed it. The 2020 estimate (FIE 1796–1803) contains no line item for trim.
- **RFP No. 22** (all prior-claim inspection records for The Property, "including the inspection records for the 2014, 2015, and 2020 claims"). For the 2014 claim, we have located the estimate, which lists "R&R Replace sash only - casement, 10-15 sf," quantity 2.00 EA (FIE 1758–1762), and 22 inspection photographs, three of which are captioned "2 window sashes hit" (FIE 1763–1764). Neither identifies the location of the two sashes. For the 2015 claim, we have located the estimate (FIE 1774–1780) but no inspection photographs or notes.
- **RFP No. 2** (the entire claim file for the 2020 Claim, "including the Xactimate estimate, the settlement notice, the building-loss worksheet, all line items, and any explanation for any line item shown as 'work not completed' or the equivalent"). We have located the photo log (FIE 1781–1791), the October 7, 2021 worksheet (FIE 1792) and the February 18, 2022 settlement notice with estimate YIBIAO_LU2 (FIE 1793–1803). We have not located any inspection notes, or any photographs of damage to the windows or siding other than FIE 1781–1791. We have also not located any document stating whether line items 1 and 3 covered whole window units or individual sashes.
- **Interrogatory No. 2** asked, for line item 1 of the estimate within The February 18, 2022 Settlement Package ("R&R Wood window - casement, 12-23 sf," 2.00 EA), the window or sash it covers by location and elevation, and whether it covers "a whole window unit or one or more individual sashes." After five objections, including that the claim "was resolved via the binding Appraisal Award" and that Plaintiffs already possess the information, the answer states that the two windows "included the replacement of the main level window to the left of the front entry (3 pieces of glass) and the full replacement of the north facing window (4 pieces of glass) at the rear four season porch." It identifies no supporting document and does not state whether any information was withheld under the objections.
- **Interrogatory No. 1** asked, for each of The Recorded Conditions (dent, mark, scrape, or indentation), "any prior claim and the estimate line item You contend paid for it." After objections, the answer refers to Defendant's Initial Disclosures and states that the November 4, 2024 letter and the Prieve Report "speak for themselves." It identifies no prior claim or estimate line item.
- **Requests for Admission Nos. 69, 70, 72 and 73** concern the 2020 estimate (FIE

1796–1803) and Defendant's claim records. The response to each is: "Pursuant to FIE's General Objections, deny."

We ask that Defendant, by **November 9, 2026**:

- (a) for RFP No. 23, without waiving the remainder of that request:
  - confirm whether FIE 1781–1791 contains every photograph taken at the October 13, 2020 inspection, and produce any that have not been produced, in native form with file names and metadata;
  - produce the inspector's notes and sketches from that inspection;
  - identify by Bates number each 2020 photograph showing the trim-board chip described at FIE 1034; and
  - produce any document showing whether the 2020 Claim addressed that chip, or state that none exists;
- (b) for RFP No. 22, without waiving the remainder of that request:
  - produce any inspection record from the 2014 claim that identifies the location of the two sashes included in the 2014 estimate, or state that none exists; and
  - produce the inspection photographs and notes from the 2015 claim, or state that none exists;
- (c) for RFP No. 2, without waiving the remainder of that request:
  - produce all inspection notes, and all photographs of damage to the windows and siding, from the 2020 Claim, or identify them by Bates number if already produced; and
  - produce each document stating whether line items 1 and 3 of the 2020 estimate covered whole window units or individual sashes, or state that none exists;
- (d) identify each document on which Defendant's answer to Interrogatory No. 2 is based, and state whether any information is being withheld on the basis of the objections stated in the answer; if none is withheld, please withdraw those objections;
- (e) without waiving the remainder of Interrogatory No. 1, for each of The Recorded Conditions (dent, mark, scrape, or indentation) that Defendant attributes to a prior claim, identify that claim and the estimate line item Defendant contends paid for it;
- (f) serve answers to Requests for Admission Nos. 69, 70, 72 and 73 that admit, specifically deny, or explain why Defendant cannot admit or deny after reasonable inquiry; and
- (g) state for each of these requests whether any responsive materials are being withheld on the basis of an objection.

3. Other responses

The items in this email are in addition to those in our October 29, 2026 email. Where this email asks for part of a request, Plaintiffs do not waive the remainder of that request. Neither email addresses every open item in Defendant's responses. Plaintiffs reserve the right to raise the others separately.

If we cannot resolve these issues, we will request a conference call with the Court under ¶ 4 of the Scheduling Order. If you would prefer to discuss any item by telephone, please let us know.

Regards,

Yibiao Lu and Jie Hu Plaintiffs pro se